

Galaxy

SCIENCE FICTION

MARCH 1951

25¢
AND

MARCH 1951

GALAXY

SCIENCE FICTION



THE WIND BETWEEN THE WORLDS

By Lester del Rey

Ross S. MacKenzie

Galaxy

SCIENCE FICTION

MARCH 1951

25¢
ANC

MARCH 1951

GALAXY

SCIENCE FICTION



The Project Gutenberg eBook of The Other Now

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Other Now

Author: Murray Leinster

Illustrator: Philip Bard

Release date: February 2, 2016 [eBook #51112]

Most recently updated: October 22, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/51112

Credits: Produced by Greg Weeks, Mary Meehan and the Online
Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE OTHER
NOW ***

THE OTHER NOW

By MURRAY LEINSTER

Illustrated by PHIL BARD

**[Transcriber's Note: This etext was produced from
Galaxy Science Fiction March 1951.
Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

**He knew his wife was dead, because he'd seen her buried.
But it was only one possibility out of infinitely many!**

It was self-evident nonsense. If Jimmy Patterson had told anybody but Haynes, calm men in white jackets would have taken him away for psychiatric treatment which undoubtedly would have been effective. He'd have been restored to sanity and common sense, and he'd probably have died of it. So to anyone who liked Jimmy and Jane, it is good that things worked out as they did. The facts are patently impossible, but they are satisfying.

Haynes, though, would like very much to know exactly why it happened in the case of Jimmy and Jane and nobody else. There must have been some specific reason, but there's absolutely no clue to it.

It began about three months after Jane was killed in that freak accident. Jimmy had taken her death hard. This night seemed no different from any other. He came home just as usual and his throat tightened a little, just as usual, as he went up to the door. It was still intolerable to know that Jane wouldn't be waiting for him.

The hurt in his throat was a familiar sensation which he was doggedly hoping would go away. But it was extra strong tonight and he wondered rather desperately if he'd sleep, or, if he did, whether he would dream. Sometimes he had dreams of Jane and was happy until he woke up, and then he wanted to cut his throat. But he wasn't at that point tonight. Not yet.

As he explained it to Haynes later, he simply put his key in the door and opened it and started to walk in. But he kicked the door instead, so he absently put his key in the door and opened it and started to walk in—

Yes, that is what happened. He was half-way through before he realized. He stared blankly. The door looked perfectly normal. He closed it behind him, feeling queer. He tried to reason out what had happened.



Then he felt a slight draught. The door wasn't shut. It was wide open. He had to close it again.

That was all that happened to mark this night off from any other, and there is no explanation why it happened—began, rather—this night instead of another. Jimmy went to bed with a taut feeling. He'd had the conviction that he opened the door twice. The same door. Then he'd had the conviction that he had had to close it twice. He'd heard of that feeling. Queer, but no doubt commonplace.

He slept, blessedly without dreams. He woke next morning and found his muscles tense. That was an acquired habit. Before he opened his eyes, every morning, he reminded himself that Jane wasn't beside him. It was necessary. If he forgot and turned contentedly—to emptiness—the ache of being alive, when Jane wasn't, was unbearable.

This morning he lay with his eyes closed to remind himself, and instead found himself thinking about that business of the door. He'd kicked the door between the two openings, so it wasn't only an illusion of repetition. He was puzzling over that repetition after closing the door, when he found he had to close it again. That proved to him it wasn't a standard mental vagary. It looked like a delusion. But his memory insisted that it had happened that way, whether it was possible or not.

Frowning, he went out and got his breakfast at a restaurant and rode to work. Work was blessed, because he had to think about it. The main trouble was that sometimes something turned up which Jane would have been amused to hear, and he had to remind himself that there was no use making a mental note to tell her. Jane was dead.

Today he thought a good deal about the door, but when he went home he knew that he was going to have a black night. He wouldn't sleep, and oblivion would seem infinitely tempting, because the ache of being alive, when Jane wasn't, was horribly tedious and he could not imagine an end to it. Tonight would be a very bad one, indeed.

He opened the door and started in. He went crashing into the door. He stood still for an instant, and then fumbled for the lock. But the door was open. He'd opened it. There hadn't been anything for him to run into. Yet his forehead hurt where he'd bumped into the door which wasn't closed at all.

There was nothing he could do about it, though. He went in. He hung up his coat. He sat down wearily. He filled his pipe and grimly faced a night that was going to be one of the worst. He struck a match and lighted his pipe, and put the match in an ashtray. And he glanced in the tray. There were the stubs of cigarets in it. Jane's brand. Freshly smoked.

He touched them with his fingers. They were real. Then a furious anger filled him. Maybe the cleaning woman had had the intolerable insolence to smoke Jane's cigarettes. He got up and stormed through the house, raging as he searched for signs of further impertinence. He found none. He came back, seething, to his chair. The ashtray was empty. And there'd been nobody around to empty it.

It was logical to question his own sanity, and the question gave him a sort of grim cheer. The matter of the recurrent oddities could be used to fight the abysmal depression ahead. He tried to reason them out, and always they added up to delusions only.

But he kept his mind resolutely on the problem. Work, during the day, was a godsend. Sometimes he was able to thrust aside for whole half-hours the fact that Jane was dead. Now he grappled relievedly with the question of his sanity or lunacy. He went to the desk where Jane had kept her household accounts. He'd set the whole thing down on paper and examine it methodically, checking this item against that.

Jane's diary lay on the desk-blotter, with a pencil between two of its pages. He picked it up with a tug of dread. Some day he might read it—an absurd chronicle Jane had never offered him—but not now. Not now!

That was when he realized that it shouldn't be here. His hands jumped, and it fell open. He saw Jane's angular writing and it hurt. He closed it quickly, aching all over. But the printed date at the top of the page registered on his brain even as he snapped the cover shut.

He sat still for minutes, every muscle taut.

It was a long time before he opened the book again, and by that time he had a perfectly reasonable explanation. It must be that Jane hadn't restricted herself to assigned spaces. When she had something extra to write, she wrote it on past the page allotted for a given date.

Of course!

Jimmy fumbled back to the last written page, where the pencil had been, with a tense matter-of-factness. It was, as he'd noticed, today's date. The page was filled. The writing was fresh. It was Jane's handwriting.

"Went to the cemetery," said the sprawling letters. "It was very bad. Three months since the accident and it doesn't get any easier. I'm developing a personal enmity to chance. It doesn't seem like an abstraction any more. It was chance that killed Jimmy. It could have been me instead, or neither of us. I wish—"

Jimmy went quietly mad for a moment or two. When he came to himself he was staring at an empty desk-blotted. There wasn't any book before him. There wasn't any pencil between his fingers. He remembered picking up the pencil and writing desperately under Jane's entry. *"Jane!"* he'd written—and he could remember the look of his scrawled script under Jane's—*"where are you? I'm not dead! I thought you were! In God's name, where are you?"*

But certainly nothing of the sort could have happened. It was delusion.

That night was particularly bad, but curiously not as bad as some other nights had been. Jimmy had a normal man's horror of insanity, yet this wasn't, so to speak, normal insanity. A lunatic has always an explanation for his delusions. Jimmy had none. He noted the fact.

Next morning he bought a small camera with a flash-bulb attachment and carefully memorized the directions for its use. This was the thing that would tell the story. And that night, when he got home, as usual after dark, he had the camera ready. He unlocked the door and opened it. He put his hand out tentatively. The door was still closed.

He stepped back and quickly snapped the camera. There was a sharp flash of the bulb. The glare blinded him. But when he put out his hand again, the door was open. He stepped into the living-room without having to unlock and open it a second time.

He looked at the desk as he turned the film and put in a new flash-bulb. It was as empty as he'd left it in the morning. He hung up his coat and settled

down tensely with his pipe. Presently he knocked out the ashes. There were cigaret butts in the tray.

He quivered a little. He smoked again, carefully not looking at the desk. It was not until he knocked out the second pipeful of ashes that he let himself look where Jane's diary had been.

It was there again. The book was open. There was a ruler laid across it to keep it open.

Jimmy wasn't frightened, and he wasn't hopeful. There was absolutely no reason why this should happen to him. He was simply desperate and grim when he went across the room. He saw yesterday's entry, and his own hysterical message. And there was more writing beyond that.

In Jane's hand.

"Darling, maybe I'm going crazy. But I think you wrote me as if you were alive. Maybe I'm crazy to answer you. But please, darling, if you are alive somewhere and somehow—"

There was a tear-blot here. The rest was frightened, and tender, and as desperate as Jimmy's own sensations.

He wrote, with trembling fingers, before he put the camera into position and pressed the shutter-control for the second time.

When his eyes recovered from the flash, there was nothing on the desk.

He did not sleep at all that night, nor did he work the next day. He went to a photographer with the film and paid an extravagant fee to have the film developed and enlarged at once. He got back two prints, quite distinct. Even very clear, considering everything. One looked like a trick shot, showing a door twice, once open and once closed, in the same photograph. The other was a picture of an open book and he could read every word on its pages. It was inconceivable that such a picture should have come out.

He walked around practically at random for a couple of hours, looking at the pictures from time to time. Pictures or no pictures, the thing was nonsense. The facts were preposterous. It must be that he only imagined seeing these prints. But there was a quick way to find out.

He went to Haynes. Haynes was his friend and reluctantly a lawyer—reluctantly because law practice interfered with a large number of unlikely hobbies.

"Haynes," said Jimmy quietly, "I want you to look at a couple of pictures and see if you see what I do. I may have gone out of my head."

He passed over the picture of the door. It looked to Jimmy like two doors, nearly at right angles, in the same door-frame and hung from the same hinges.

Haynes looked at it and said tolerantly, "Didn't know you went in for trick photography." He picked up a reading glass and examined it in detail. "A futile but highly competent job. You covered half the film and exposed with the door closed, and then exposed for the other half of the film with the door open. A neat job of matching, though. You've a good tripod."

"I held the camera in my hand," said Jimmy, with restraint.

"You couldn't do it that way, Jimmy," objected Haynes. "Don't try to kid me."

"I'm trying not to fool myself," said Jimmy. He was very pale. He handed over the other enlargement. "What do you see in this?"

Haynes looked. Then he jumped. He read through what was so plainly photographed on the pages of a diary that hadn't been before the camera. Then he looked at Jimmy in palpable uneasiness.

"Got any explanation?" asked Jimmy. He swallowed. "I—haven't any."

He told what had happened to date, baldly and without any attempt to make it reasonable. Haynes gaped at him. But before long the lawyer's eyes grew shrewd and compassionate. As noted hitherto, he had a number of unlikely hobbies, among which was a loud insistence on a belief in a fourth dimension and other esoteric ideas, because it was good fun to talk authoritatively about them. But he had common sense, had Haynes, and a good and varied law practice.

Presently he said gently, "If you want it straight, Jimmy ... I had a client once. She accused a chap of beating her up. It was very pathetic. She was absolutely sincere. She really believed it. But her own family admitted that she'd made the marks on herself—and the doctors agreed that she'd unconsciously blotted it out of her mind afterward."

"You suggest," said Jimmy composedly, "that I might have forged all that to comfort myself with, as soon as I could forget the forging. I don't think that's the case, Haynes. What possibilities does that leave?"

Haynes hesitated a long time. He looked at the pictures again, scrutinizing especially the one that looked like a trick shot.

"This is an amazingly good job of matching," he said wryly. "I can't pick the place where the two exposures join. Some people might manage to swallow this, and the theoretic explanation is a lot better. The only trouble is that it couldn't happen."

Jimmy waited.

Haynes went on awkwardly, "The accident in which Jane was killed. You were in your car. You came up behind a truck carrying structural steel. There was a long slim girder sticking way out behind, with a red rag on it. The truck had airbrakes. The driver jammed them on just after he'd passed over a bit of wet pavement. The truck stopped. Your car slid, even with the brakes locked.—It's nonsense, Jimmy!"

"I'd rather you continued," said Jimmy, white.

"You—ran into the truck, your car swinging a little as it slid. The girder came through the windshield. It could have hit you. It could have missed both of you. By pure chance, it happened to hit Jane."

"And killed her," said Jimmy very quietly. "Yes. But it might have been me. That diary entry is written as if it had been me. Did you notice?"

There was a long pause in Haynes' office. The world outside the windows was highly prosaic and commonplace and normal. Haynes wriggled in his chair.

"I think," he said unhappily, "you did the same as my girl client—forged that writing and then forgot it. Have you seen a doctor yet?"

"I will," said Jimmy. "Systematize my lunacy for me first, Haynes. If it can be done."

"It's not accepted science," said Haynes. "In fact, it's considered eyewash. But there have been speculations...." He grimaced. "First point is that it was pure chance that Jane was hit. It was just as likely to be you instead, or neither of you. If it had been you—"

"Jane," said Jimmy, "would be living in our house alone, and she might very well have written that entry in the diary."

"Yes," agreed Haynes uncomfortably. "I shouldn't suggest this, but—there are a lot of possible futures. We don't know which one will come about for us. Nobody except fatalists can argue with that statement. When today was in the future, there were a lot of possible todays. The present moment—now—is only one of any number of nows that might have been. So it's been suggested—mind you, this isn't accepted science, but pure charlatanry—it's been suggested that there may be more than one actual now. Before the girder actually hit, there were three nows in the possible future. One in which neither of you was hit, one in which you were hit, and one—"

He paused, embarrassed. "So some people would say, how do we know that the one in which Jane was hit is the only now? They'd say that the others could have happened and that maybe they did."

Jimmy nodded.

"If that were true," he said detachedly, "Jane would be in a present moment, a now, where it was me who was killed. As I'm in a now where she was killed. Is that it?"

Haynes shrugged.

Jimmy thought, and said gravely, "Thanks. Queer, isn't it?"

He picked up the two pictures and went out.

Haynes was the only one who knew about the affair, and he worried. But it is not easy to denounce someone as insane, when there is no evidence that he is apt to be dangerous. He did go to the trouble to find out that Jimmy acted in a reasonably normal manner, working industriously and talking quite sanely in the daytime. Only Haynes suspected that of nights he went home and experienced the impossible. Sometimes, Haynes suspected that the impossible might be the fact—that had been an amazingly good bit of trick photography—but it was too preposterous! Also, there was no reason for such a thing to happen to Jimmy.

For a week after Haynes' pseudo-scientific explanation, however, Jimmy was almost light-hearted. He no longer had to remind himself that Jane was dead. He had evidence that she wasn't. She wrote to him in the diary which he found on her desk, and he read her messages and wrote in return. For a full week the sheer joy of simply being able to communicate with each other was enough.

The second week was not so good. To know that Jane was alive was good, but to be separated from her without hope was not. There was no meaning in a cosmos in which one could only write love-letters to one's wife or husband in another now which only might have been. But for a while both Jimmy and Jane tried to hide this new hopelessness from each other.

Jimmy explained this carefully to Haynes before it was all over. Their letters were tender and very natural, and presently there was even time for gossip and actual bits of choice scandal....

Haynes met Jimmy on the street one day, after about two weeks. Jimmy looked better, but he was drawn very fine. Though he greeted Haynes without constraint, Haynes felt awkward. After a little he said, "Er—Jimmy. That matter we were talking about the other day—Those photographs—"

"Yes. You were right," said Jimmy casually. "Jane agrees. There is more than one now. In the now I'm in, Jane was killed. In the now she's in, I was killed."

Haynes fidgeted. "Would you let me see that picture of the door again?" he asked. "A trick film like that simply can't be perfect! I'd like to enlarge that picture a little more. May I?"

"You can have the film," said Jimmy. "I don't need it any more."

Haynes hesitated. Jimmy, quite matter-of-factly, told him most of what had happened to date. But he had no idea what had started it. Haynes almost wrung his hands.

"The thing can't be!" he said desperately. "You *have* to be crazy, Jimmy!"

But he would not have said that to a man whose sanity he really suspected.

Jimmy nodded. "Jane told me something, by the way. Did you have a near-accident night before last? Somebody almost ran into you out on the Saw Mill Road?"

Haynes started and went pale. "I went around a curve and a car plunged out of nowhere on the wrong side of the road. We both swung hard. He smashed my fender and almost went off the road himself. But he went racing off without stopping to see if I'd gone in the ditch and killed myself. If I'd been five feet nearer the curve when he came out of it—"

"Where Jane is," said Jimmy, "you were. Just about five feet nearer the curve. It was a bad smash. Tony Shields was in the other car. It killed him—where Jane is."

Haynes licked his lips. It was absurd, but he said, "How about me?"

"Where Jane is," Jimmy told him, "you're in the hospital."

Haynes swore in unreasonable irritation. There wasn't any way for Jimmy to know about that near-accident. He hadn't mentioned it, because he'd no idea who'd been in the other car.

"I don't believe it!" But he said pleadingly, "Jimmy, it isn't so, is it? How in hell could you account for it?"

Jimmy shrugged. "Jane and I—we're rather fond of each other." The understatement was so patent that he smiled faintly. "Chance separated us. The feeling we have for each other draws us together. There's a saying about two people becoming one flesh. If such a thing could happen, it would be Jane and me. After all, maybe only a tiny pebble or a single extra

drop of water made my car swerve enough to get her killed—where I am, that is. That's a very little thing. So with such a trifle separating us, and so much pulling us together—why, sometimes the barrier wears thin. She leaves a door closed in the house where she is. I open that same door where I am. Sometimes I have to open the door she left closed, too. That's all."

Haynes didn't say a word, but the question he wouldn't ask was so self-evident that Jimmy answered it.

"We're hoping," he said. "It's pretty bad being separated, but the—phenomena keep up. So we hope. Her diary is sometimes in the now where she is, and sometimes in this now of mine. Cigaret butts, too. Maybe—" That was the only time he showed any sign of emotion. He spoke as if his mouth were dry. "If ever I'm in her now or she's in mine, even for an instant, all the devils in hell couldn't separate us again!—We hope."

Which was insanity. In fact, it was the third week of insanity. He'd told Haynes quite calmly that Jane's diary was on her desk every night, and there was a letter to him in it, and he wrote one to her. He said quite calmly that the barrier between them seemed to be growing thinner. That at least once, when he went to bed, he was sure that there was one more cigaret stub in the ashtray than had been there earlier in the evening.

They were very near indeed. They were separated only by the difference between what was and what might have been. In one sense the difference was a pebble or a drop of water. In another, the difference was that between life and death. But they hoped. They convinced themselves that the barrier grew thinner. Once, it seemed to Jimmy that they touched hands. But he was not sure. He was still sane enough not to be sure. And he told all this to Haynes in a matter-of-fact fashion, and speculated mildly on what had started it all....

Then, one night, Haynes called Jimmy on the telephone. Jimmy answered.

He sounded impatient.

"Jimmy!" said Haynes. He was almost hysterical. "I think I'm insane! You know you said Tony Shields was in the car that hit me?"

"Yes," said Jimmy politely. "What's the matter?"

"It's been driving me crazy," wailed Haynes feverishly. "You said he was killed—there. But I hadn't told a soul about the incident. So—so just now I broke down and phoned him. And it *was* Tony Shields! That near-crash scared him to death, and I gave him hell and—he's paying for my fender! I didn't tell him he was killed."

Jimmy didn't answer. It didn't seem to matter to him.

"I'm coming over!" said Haynes feverishly. "I've got to talk!"

"No," said Jimmy. "Jane and I are pretty close to each other. We've touched each other again. We're hoping. The barrier's wearing through. We hope it's going to break."

"But it can't!" protested Haynes, shocked at the idea of improbabilities in the preposterous. "It—it can't! What'd happen if you turned up where she is, or—or if she turned up here?"

"I don't know," said Jimmy, "but we'd be together."

"You're crazy! You mustn't—"

"Goodbye," said Jimmy politely. "I'm hoping, Haynes. Something has to happen. It has to!"

His voice stopped. There was a noise in the room behind him; Haynes heard it. Only two words, and those faintly, and over a telephone, but he swore to himself that it was Jane's voice, throbbing with happiness. The two words Haynes thought he heard were, "*Jimmy! Darling!*"

Then the telephone crashed to the floor and Haynes heard no more. Even though he called back frantically again, Jimmy didn't answer.

Haynes sat up all that night, practically gibbering, and he tried to call Jimmy again next morning, and then tried his office, and at last went to the police. He explained to them that Jimmy had been in a highly nervous state since the death of his wife.

So finally the police broke into the house. They had to break in because every door and window was carefully fastened from the inside, as if Jimmy had been very careful to make sure nobody could interrupt what he and Jane hoped would occur. But Jimmy wasn't in the house. There was no trace of him. It was exactly as if he had vanished into the air.

Ultimately the police dragged ponds and such things for his body, but they never found any clues. Nobody ever saw Jimmy again. It was recorded that Jimmy simply left town, and everybody accepted that obvious explanation.

The thing that really bothered Haynes was the fact that Jimmy had told him who'd almost crashed into him on the Saw Mill Road, and it was true. That was, to understate, hard to take. And there was the double-exposure picture of Jimmy's front door, which was much more convincing than any other trick picture Haynes had ever seen. But on the other hand, if it did happen, why did it happen only to Jimmy and Jane? What set it off? What started it? Why, in effect, did those oddities start at that particular time, to those particular people, in that particular fashion? In fact, did anything happen at all?

Now, after Jimmy's disappearance, Haynes wished he could talk with him once more—talk sensibly, quietly, without fear and hysteria and this naggingly demanding wonderment.

For he had sketched to Jimmy, and Jimmy had accepted (hadn't he?) the possibility of the *other now*—but with that acceptance came still others. In one, Jane was dead. In one, Jimmy was dead. It was between these two that the barrier had grown so thin....

If he could talk to Jimmy about it!

There was also a now in which *both* had died, and another in which *neither* had died! And if it was togetherness that each wanted so desperately ... *which was it?*

These were things that Haynes would have liked very much to know, but he kept his mouth shut, or calm men in white coats would have come and taken him away for treatment. As they would have taken Jimmy.

The only thing really sure was that it was all impossible. But to someone who liked Jimmy and Jane—and doubtless to Jimmy and to Jane themselves—no matter which barrier had been broken, it was a rather satisfying impossibility.

Haynes' car had been repaired. He could easily have driven out to the cemetery. For some reason, he never did.

*** END OF THE PROJECT GUTENBERG EBOOK THE OTHER NOW

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.